

**ORDER SHEET
IN THE LAHORE HIGH COURT
LAHORE.
JUDICIAL DEPARTMENT**

Crl. Misc. No.247680-B of 2018

Shahryar

Versus

The State and another.

S.No of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary.
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15.01.2019 Mr. Muhammad Aslam Haider Gondal, Advocate for the petitioner.
Mr. Usman Sarwar, Advocate for the complainant.
Mr. Shabbir Ahmad, Deputy Prosecutor General.
Hashim, S.I with record.

Having failed to get the post arrest bail in case FIR No.596 dated 11.05.2018, registered under Section 392 PPC at Police Station Satukatla, Lahore from the Court of learned Additional Sessions Judge, Lahore vide order dated 15.10.2018 the petitioner seeks the same relief through this petition.

2. The brief allegation against the present petitioner namely, Shahryar is that he along with his co-accused committed robbery on gun point with the complainant's wife.

3. Heard. Record perused.

4. The perusal of record shows that the alleged occurrence took place on 09.05.2018 at 08:15 p.m whereas the matter was reported to the police on 11.05.2018 at 06:15 p.m with a delay of two days, the explanation of which has not been advanced by the complainant while lodging the FIR. The allegation against the present petitioner is that when he was stuck by the complainant with his car he succeeded to run away while leaving his motorcycle at the crime scene. The contents of crime report further depicts that soon after the

occurrence, police reached at the spot and they have taken the said motorcycle into their possession but despite this fact the delay of two days in lodging the crime report creates a serious doubt regarding the veracity of the stance of the complainant.

5. Learned counsel appearing on behalf of the petitioner strongly argued that after arrest of the petitioner i.e. on 15.06.2018 he was produced before the learned Judicial Magistrate Model Town, Lahore who ordered to send him on judicial remand for the purpose of identification parade but the accused was never sent to the jail rather the police kept him in the police lock up for about six days. Learned Judicial Magistrate issued Show Cause Notices to the delinquent police officials, and vide order dated 19.07.2018 the inquiry regarding the above said illegal act of the police officials was recommended to the CCPO, Lahore.

6. Another aspect of the case is that though the accused were arrested on 15.06.2018, the identification parade was conducted on 31.07.2018 with a delay of about one and a half months. This aspect of the case also speaks volumes on part of the police. Even otherwise, the accused is behind the bars since his arrest. The report under Section 173 Cr.P.C has already been submitted on 16.08.2018 and since then there is no progress in the trial. The investigation has already been completed and further incarceration of the petitioner behind the bars would not serve any beneficial purpose for the prosecution.

7. For what has been discussed above, prima facie, there are sufficient reasons to believe that the case of the petitioner, called further probe into his guilt within the scope of Section 497(2) Cr.P.C. So, the instant petition is hereby allowed and the petitioner is admitted to post arrest bail subject to his furnishing bail bond in the sum

of Rs.2,00,000/- (rupees two lac) with one surety in the like amount to the satisfaction of the learned trial court.

7. 0. 0. -

(Muhammad Waheed Khan)
Judge.

APPROVED FOR REPORTING.

7. 0. 0. -

Judge.

Ansari*

Blue slip is not put.

By
09/11/19